TECLAR DADIRAI CHINEMBIRI
versus
EXPENCE CHARLES NHAMO SHONIWA
and
MUNATSI JEMWA
and
TRIPPLE HORIZON REAL ESTATE
and
CHITUNGWIZA MUNICIPALITY

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE; 9 June & 8 July 2026

Civil trial – Absolution from the Instance

P Mleya, for the plaintiff
T Deme, for the 1st & 2nd defendants
W Chagwiza, for the 3rd defendant

DEMBURE J: The first, second and third defendants apply for absolution from the instance at the close of the plaintiff's case. The applications are made in terms of r 56(6) of the High Court Rules, 2021. The joint application by the first and second defendants was filed on 11 June 2026, whilst the application by the third defendant was filed on 12 June 2026. The applications follow the case management order I issued with the consent of the parties on 9 June 2026. The court order set out the time frames within which the parties would file their respective papers. The parties duly complied with the time frames stipulated therein. The plaintiff opposes the applications.

FACTUAL SYNOPSIS

The dispute between the parties concerns an immovable property called stand 13271 Zengeza 5, Chitungwiza, also known as number 6 Chaitemura Choseva, Zengeza 5, Chitungwiza (*"the property"*). It is common cause that the plaintiff and the first defendant were married in

terms of the African Marriages Act [*Chapter 238]* at Chitungwiza on 21 January 1986. It is undisputed that no court order exists for the dissolution of the marriage, although the first defendant pleaded that he terminated what he described as an unregistered customary union in 2002, before relocating to the United Kingdom. It is also not in dispute that the plaintiff instituted proceedings for divorce and other ancillary relief, including the sharing of the property in question, on 13 July 2023 under case number HCHF 4642/23.

It is common cause that at the time the property was purchased by the second defendant, it was registered solely in the name of the first defendant with Chitungwiza Municipality, the fourth defendant. This was also confirmed by the fourth defendant in its letter dated 30 May 2023 (Exhibit 4). There is no dispute that the first and second defendants entered into an agreement of sale of the property on 6 May 2023. The sale was concluded without the plaintiff's knowledge or consent. The third defendant acted as an agent for the first defendant in the sale.

There is also no dispute that the second defendant paid the cession application and transfer fees for the property at the fourth defendant's office. In terms of the unchallenged letter from the fourth defendant, Exhibit 4, the process for the cession of the property was, as of 30 May 2023, awaiting final approval by Council. The second defendant gave the sitting tenant three (3) months' notice to vacate the property through the third defendant.

It is also common cause that the divorce proceedings under case number HCHF 4642/23 were commenced by the plaintiff after the sale of the property. Those proceedings are still pending. The plaintiff had not filed any claim for a share of the property before the date of the sale. There was also no caveat registered nor was there any court order barring the first defendant from disposing of the property.

The plaintiff averred that she jointly acquired the property with the first defendant during the subsistence of their marriage. That the first defendant deserted her sometime in 2002. She further pleaded that the property is their matrimonial property and is the subject of the pending litigation, wherein she claims to be awarded 90 per cent share of the property. It was further alleged that the first, second and third defendants, despite knowing that she had a valid claim to the property, connived and fraudulently disposed of the property without her knowledge or consent. She alleged that she was prejudiced by the "malicious, fraudulent and wrongful misrepresentations" of the first, second and third defendants and that she was entitled to

cancellation of the said agreement of sale. The plaintiff accordingly seeks the following relief against the defendants:

> "(a) An order for cancellation of the sale of Stand 13271 Zengeza 5 Chitungwiza also known as Number 6 Chaitemura Choseva Crescent, Zengeza 5, Chitungwiza between first and second Defendants.
> (b) That the first, second and third Defendants pay costs of suit on a legal practitioner and client scale."

The plaintiff's claim is contested by the first to third defendants. The first and second defendant filed their plea jointly. In that plea, the first defendant denied being legally married to the plaintiff. He alleged that they entered into an unregistered customary union, which was terminated in 2002 by the performance of customary rites and the payment of "gupuro" before he relocated to the United Kingdom the following year. He denied that the property was jointly acquired by her and the plaintiff. He contended that the property was acquired and owned solely and exclusively by him. He thus had full rights to dispose of the property to whomsoever he wished without consulting or seeking the plaintiff's consent.

It was further contended that the sale was concluded before the issue of the summons for divorce, and that the property was not *res litigiosa* so as to render the sale unlawful. The two defendants also pleaded that there was no fraud or connivance by them, nor was there any fraudulent conduct as the first defendant sold the property he exclusively owned. It was denied that the plaintiff had any valid claim to the property. The second defendant also denied having been notified by letter that the plaintiff had a valid claim to the property. They contended that there was no just cause for the cancellation of the agreement of sale.

As for the third defendant, it was denied that the estate agent had knowledge that the property was jointly acquired and owned by the plaintiff and the first defendant. It was averred that on the date of the sale, the first defendant was the sole registered holder of rights and interest in the property and could dispose of the property without recourse to the plaintiff. That it only acted as an agent in the sale and that there was no cause of action against it.

The plaintiff filed her replication, and the matter proceeded to a Pre-Trial Conference. It was referred to trial on the following triable issues:

> "a) Whether or not the transaction between first, second and third Defendants to sell the property known as stand 13271 Zengeza 5 Chitungwiza, was fraudulent and therefore null and void.

b) Whether or not cession of rights was effected on the property from the first Defendant to the second Defendant."

The trial commenced before me on 9 June 2026. The plaintiff testified as the sole witness for her own case. Thereafter, she closed her case. The defendants filed the present applications for absolution from the instance. The parties complied with the case management order by filing their respective submissions as directed. Judgment was reserved *sine die* as at 24 June 2026.

THE FIRST AND SECOND DEFENDANTS' APPLICATION

Mr *Deme* submitted that the test for absolution from the instance at the close of the plaintiff's case is whether there is evidence upon which a reasonable court, applying its mind reasonably to such evidence, could or might find for the plaintiff. Reference was made to the following cases: *Afrasia Bank Ltd* v *Drummond Ranching (Pvt) Ltd & Ors* HH 237/17; *Gascoyne* v *Paul & Hunter* 1971 TPD 170; *Supreme Service Station (Pvt) Ltd (1969)* v *Fox & Goodridge (Pvt) Ltd* 1971 (1) RLR 1 (A) and *Edmond Totri and George Patrinos* v *Phathisani Nkomo* HB 222/20. The plaintiff has to make a *prima facie* case in that there must be evidence relating to all elements of the claim.

It was further argued that the plaintiff has failed to adduce evidence establishing the cause of action against the defendants. Fraud must be specifically pleaded and proved with clear and cogent evidence. The plaintiff admitted under cross-examination that she had no evidence of collusion between the first and second defendants, that the defendants acted fraudulently, or of any false representations made by the defendants. The case rests on speculation. There was no dispute that the first defendant was the sole registered holder of rights in the property, and that, when it was sold, there was no pending litigation between the plaintiff and the first defendant concerning the property. No caveat existed, nor was there an interdict barring any sale. The evidence from the plaintiff in the form of Exhibit 4 confirms that the property was registered in the first defendant's name.

It was further submitted that the plaintiff cannot seek to rely on the alleged future entitlement arising from the divorce proceedings, which she admitted were instituted only after the sale transaction had already been concluded. The plaintiff held no court-declared interest in the property that could restrict the first defendant from alienating his rights in it. Even if it is taken that they are married, that does not assist the plaintiff's case. The first defendant was

entitled to dispose of property registered in his name. See *Semwayo & Anor* v *Chatara* & *Anor* HH 48/07; *Magurenje* v *Maposa & Ors* 2005 (2) ZLR 44. There was no evidence that she was allocated the property by ZANU PF. This allegation was not pleaded and, in any case, was unsubstantiated. The plaintiff alleged that the documents showing her allocation disappeared from the file at the fourth defendant, but this was not pleaded. No witness from the Council was called to substantiate her allegation, and no documentary evidence was tendered in support. None of her exhibits established her case. They do not establish any fraud, collusion or misrepresentation by the defendants.

Mr *Deme* also argued that the second triable issue would be irrelevant once the plaintiff fails on the first issue. That the plaintiff's evidence was also riddled with material inconsistencies. There is no evidence upon which the court could find for the plaintiff that the transaction was fraudulent, that the parties connived at acting unlawfully, or that the sale should be cancelled. The first and second defendant pray for the absolution to be granted with costs on a legal practitioner and client scale.

THE THIRD DEFENDANT'S APPLICATION

Mr *Chagwiza* submitted that the plaintiff specifically based her cause of action against the third defendant on fraud, alleging that the defendants connived to dispose of the property knowing that it was her matrimonial property in which she had a valid claim. Counsel made the following further submissions. It was common cause that the property was registered solely in the name of the first defendant. This was confirmed by the letter from the Council, Exhibit 4. The plaintiff had not filed any claim for a share of the property for over 20 years and did so only in HCHF 4642/23, filed on 13 July 2023, after the property had already been sold to the second defendant. The notification of her interest in the property was communicated to the third defendant only on 18 May 2023, after the first and second defendants had signed the agreement of sale and cession papers.

Counsel also related to the same test for absolution from the instance at the close of the plaintiff's case. The following cases were cited as authority: *Lourenco* v *Raja Dry Cleaners & Steam Laundry (Pvt) Ltd* 1984 (2) ZLR 151 (S) at 156-158; and *Mazibuko* v *Santam Insurance Co. Ltd & Anor* 1982 (3) SA 125 (A) at 133. It is trite that an owner of a property is entitled to dispose of the property registered in their name without recourse to their spouse. See *Muswere* v

Makanza 2004 (2) ZLR 262 (H). It was argued that this principle equally applies in this case. The plaintiff conceded that at the time the sale was concluded the third defendant had no knowledge of the plaintiff's claim or interest in the property. There is no way the court can find that the third defendant acted fraudulently in the sale of the property. There was no evidence that the defendants had any prior knowledge of her interest in the property before the sale. There is no fraud or *mala fides* to warrant the setting aside of the sale.

It was further submitted that the plaintiff had not registered a caveat and the first defendant could perfectly dispose of the property. There was no iota of evidence to prove that the defendants connived or of any fraudulent conduct on the part of the third defendant. The plaintiff failed to give evidence to impeach the sale. The application ought to be granted with costs on an attorney-client scale. This is because there was no reason to drag the third defendant to court. The third defendant only acted as an agent of a known principal. It was that principal who ought to have been sued. The plaintiff in her evidence admitted that the third defendant had no knowledge of her interest in the property at the time of the sale. The third defendant has been made to incur unnecessary legal costs. It would be fair for the costs to be awarded on a higher scale.

THE OPPOSITION BY THE PLAINTIFF

Mrs *Mleya* submitted that the plaintiff opposes the defendants' applications for absolution from the instance. Counsel confirmed the test for absolution from the instance. She referred to the cases of *ZIMASCO (Pvt) Ltd* v *Tsvangirai & Others* SC 12/20; *Supreme Service Station (1969) (Pvt) Ltd* v *Fox Goodridge (Pty) Ltd* 1971 (1) RLR 1 (A) at 5D–E; *United Air Charters (Pvt) Ltd* v *Jarman* 1994 (2) ZLR 341 (S) 343 B-C and *Morris* v *Nhachi & Ors* HH 424/26. It was submitted that the plaintiff gave evidence proving fraud arising from misrepresentations made by the first defendant in the sale of the property. That she managed to show the connivance between the defendants in continuing to dispose of the property after knowledge of the plaintiff's interests therein. Counsel stated that the plaintiff did not concede that there was no evidence of collusion or fraud on the defendants. In her evidence, she established that the sale was done without her knowledge or consent. She only found out after the sale had taken place when she saw the notice to vacate the property that had been served on her tenants.

Counsel further argued that the first defendant misrepresented his marital status to the fourth defendant as shown by Exhibit 4. The first defendant has perpetuated the misrepresentation of his marital status in his pleadings. Exhibit 2 shows that the marriage still subsists. The defendants also misrepresented in their pleadings that cession was complete. This was clear connivance. The fact that the first and second defendants are represented by the same legal practitioner and jointly pleading is clear evidence of connivance. The second defendant is not an innocent purchaser. There is no registered title in respect of the property as the first defendant holds rights under a cession agreement with the fourth defendant.

Mrs *Mleya* also contended that the plaintiff testified that the property was registered in the first defendant's name after she obtained it through her direct efforts and contribution. It was allocated to her through a letter from ZANU PF. She contributed financially to the acquisition of the property through payments of instalments. She also proved her indirect contributions. The courts protect the rights of spouses who can prove that another spouse's disposal of property was fraudulent or malicious to defeat their rights or interests. See *Semwayo & Anor* v *Chitara & Anor* HH 48/07, *Ferris* v *Waeven* 1952 (2) ALL ER 233, *Nyatwa* v *Nene* SC 119/91. The divorce was anticipated after the parties separated in 2002, although the plaintiff was triggered by the fraudulent sale to institute divorce proceedings for the matrimonial property to be shared. The plaintiff had a valid claim to the property, given her contributions to its acquisition.

It was further argued that the rights in this case are limited. That no genuine transfer of those rights has already taken place, as the cession to the second defendant was not effected. A cession does not create any real right in the property but only transfers personal rights which remain vulnerable to claims from other people. Counsel cited *CBZ Bank Limited* v *Moyo* SC 17/18 to support her argument. She contended that, in this case, the first defendant's rights in the property are not real rights as envisaged by the courts when allowing a spouse to dispose of property registered in his name. The first defendant had limited rights and could not dispose of the property without his spouse's knowledge and consent. He misrepresented his marital status to the fourth defendant. There are no rights to talk about for the second defendant, as the cession was put on hold.

Mrs *Mleya* further submitted that the plaintiff's exhibits establish her case. In particular, Exhibit 4 proves the first defendant's fraudulent conduct in disposing of the property, as he

deposed to an affidavit stating that he was no longer married to the plaintiff. And Exhibit 5 proves that the third defendant was made aware of the status of the property and the plaintiff's claim to the property. The issue of whether cession was effected remains relevant to establishing the plaintiff's claim. The defendants are misleading the court in their pleadings. The evidence remains undisputed that the cession of rights to the second defendant was never completed, as it was put on hold by the fourth defendant. There is need for the first and second defendants to take the witness stand and explain why they deliberately misled the court. There was nothing in the plaintiff's testimony that vitiates her credibility as a witness. She remained consistent in her testimony. Accordingly, a *prima facie* case has been established that the first and second defendants acted fraudulently in disposing of the property, that the plaintiff has a legal interest in the property and the first and second defendants perpetuated their misrepresentation in their pleadings. The sale should be cancelled. Counsel finally submitted that the first and second defendants' application ought to be dismissed with costs.

THE FIRST AND SECOND DEFENDANTS' REPLY

It was submitted that the plaintiff's response does not cure the fundamental defect in her case that there is completely no evidence to establish the essential elements of fraud. The submissions were unsupported by the evidence led by the plaintiff. The issue is whether the court could reasonably find that the sale between the first and second defendant was fraudulent and liable to cancellation. The plaintiff failed to establish fraud. The alleged misrepresentation regarding marital status does not establish fraud. She failed to identify any fraudulent representation made by the second defendant, and there was no evidence to impeach the first defendant's title. No evidence was also produced to show that the second defendant had any knowledge of the plaintiff's alleged claim in the property at the time of the sale.

Mr *Deme* contended that joint representation does not constitute evidence of fraud, conspiracy or collusion. The plaintiff's cause of action is the cancellation of the agreement on the grounds of fraud. The allegation that the first defendant informed the fourth defendant that they were no longer married does not advance the plaintiff's case. There was no evidence that the agreement was induced by any misrepresentation and that the second defendant relied on any alleged misrepresentation. Her matrimonial claim does not translate into a proprietary claim. Her alleged contribution does not invalidate the sale concluded by the sole registered holder of rights

in the property before the existence of any court order for the distribution of matrimonial property. The evidence of the alleged allocation of the property by ZANU PF remained wholly unsupported.

Counsel also submitted that the argument that the cession to the second defendant had not been completed does not establish fraud, nor does it establish the plaintiff's right to cancel the agreement of sale. Whether cession was not completed or not becomes immaterial in the absence of evidence establishing the invalidity of the sale. The defendants cannot be compelled to testify to fill gaps in the plaintiff's case. There is no *prima facie* case established requiring the defendants to answer. Accordingly, absolution from the instance ought to be granted with costs on a higher scale.

THE TEST FOR A DECREE OF ABSOLUTION FROM THE INSTANCE

The parties' legal counsel correctly restated the proper approach in an application of this nature. It is trite that the test to be applied by the trial court for absolution from the instance at the close of the plaintiff's case is whether there is evidence upon which a court acting reasonably could or might find for the plaintiff. This means that the plaintiff has to make out a *prima facie* case in the sense that there is evidence relating to all the elements of the claim. The law was fully set out in *ZIMASCO (Pvt) Ltd* v *Tsvangirai & Ors* SC 12/20 at p 9, where GUVAVA JA had this to say:

> "A decree of absolution from the instance is derived from Roman Dutch law. It is the appropriate order to make, after all the evidence led by the plaintiff has not laid out a *prima facie* case upon which a court may find for the plaintiff. If at the end of the plaintiff's case there is insufficient evidence upon which a reasonable man could find for him, the defendant is entitled to absolution. See *LH Hoffman, DT Zeffert, The South African Law of Evidence (4th ed) p 507*, who notes the following:
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> > 'It has also been said that the term 'absolution from the instance' is used to describe the finding that may be made at either of two distinct stages of trial. In both cases it means that the evidence is insufficient for a finding to be made against the defendant.'
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> It is trite that the court cannot *mero motu* consider whether absolution must be granted. It is an option which is available to the defendant, upon application. When an application for absolution from the instance is made at the end of the plaintiff's case the test is**:** what might a reasonable court do, that is, is there sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff; if the application is made after the defendant has closed his case the test is: what ought a reasonable court do?"

See also *Lourenco* v *Raja Dry Cleaners & Steam Laundry (Pvt) Ltd* 1984 (2) ZLR 151 (S) at 156-158; *United Air Charters (Pvt) Ltd* v *Jarman* 1994 (2) ZLR 341 (S) 343 B-C.

THE ISSUE FOR DETERMINATION

The question is whether the plaintiff has made out a *prima facie* case against the first, second and third defendants.

ANALYSIS AND DETERMINATION

The plaintiff pleaded a cause of action founded on fraud. She averred that the agreement of sale of the property concluded between the first and second defendants, with the third defendant acting as the estate agent, was fraudulent. The basis for the allegations was that the defendants knew at the time of the sale that the plaintiff had a valid interest or claim in the property, as the first defendant's wife and that the agreement was concluded without her knowledge or consent. She alleged that she jointly acquired the property with the first defendant and that she instituted divorce proceedings seeking a 90 per cent share of the property in case number HCHF 4642/23.

The settled principle of the law is that the party who alleges fraud must plead and prove it: *Standard Bank* v *De Plooy & Anor*; *Standard Bank* v *Coetzee & Anor* (1899) 16 SC 161 at 166; *Courtney-Clarke* v *Bassingthwaighte* 1991 (1) SA 684 (Nm) at 689F-G and *Muzonda & Ors* v *Usayiwevhu* & Ors HH 107/12 at p 4. The essential elements that must be pleaded and proved in a claim for fraud for any contractual rescission are well-established. There must be a misrepresentation made by the defendant, with the knowledge that the statement of fact was false or recklessly without caring whether it is true or false; the intent to deceive must exist; that the plaintiff relied on the false statement and that the plaintiff suffered prejudice or damages as a direct result of the misrepresentation. These essential elements were remarkably explained by MANGOTA J (as he then was) in *Mashangwa & Anor* v *Makandiwa & Ors* HH 10/18 at p 3, where he said:

> "Professor G Feltoe defines fraud in his "*A Guide to The Zimbabwean Law of Delict*", 3rd Ed, p 8. The learned author states that the delict of fraud falls under deceptive practices. He says **fraud is committed when the defendant, with intent to defraud, makes a statement to the plaintiff knowing or suspecting that the statement is false and intending that the plaintiff will act upon it to his prejudice.** He stresses that, if the plaintiff suffers loss as a result of such fraudulent deception, he is entitled to claim damages. **With fraud, therefore, the false statement is made to the plaintiff who acts upon it**.

> The definition which Professor Feltoe gave for the delictual action of fraud is, with minor variations, substantially the same as fraud as defined in the law of contract. Innocent Maja defines fraud from the perspective of the law of contract. The learned author states in his book: "*The Law of Contract in Zimbabwe*" p 96, that:
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> 'For an innocent party to claim delictual damages successfully, she/he must establish that:
> there was a wrongful or unlawful conduct (by either commission or omission) by the wrongdoer:
> the conduct led to the harm of a person, property or finances, and
> the wrongdoer caused patrimonial loss either intentionally or negligently.'" (*my emphasis*)

The plaintiff's case rests on the allegation that the property was the parties' matrimonial property they jointly acquired and registered in the sole name of the first defendant out of her love and respect for her husband. She thus claimed to have a valid claim or interest in the property that could not be sold without her knowledge or consent. There is no doubt that the property was registered in the name of the first defendant at Chitungwiza Municipality, the fourth defendant. This was confirmed by the letter dated 30 May 2023 from Council which the plaintiff tendered as part of her evidence and was admitted as Exhibit 4. See p 56 of the record. The letter was addressed to the plaintiff's legal practitioners. The second paragraph thereof reads clearly that

> "according to our records, stand number 13271 Zengeza 5 is registered in the name of Mr Charles Expence Nhamo."

In my view, the issue whether the first defendant's rights to the property were absolute real rights or limited rights arising from a cession agreement is neither here nor there. It does not assist the plaintiff's case at all. Thus, the law outlined in *CBZ Bank Ltd* v *Moyo* (*supra*) does not strengthen the plaintiff's case. Given that the property was registered solely in the name of the first defendant, there was a presumption that he was the holder of the rights and interests therein, to the exclusion of the plaintiff. This means that the plaintiff had the *onus* to rebut that presumption by giving evidence which establishes that, despite the registration, she jointly held such rights in the property with the first defendant. The courts, even in cases where the property is registered in one party's name on the title deed, have not shied away from declaring another person the rightful owner of the property. This position was upheld in *Kawadza* v *Kawadza* 2019 (1) ZLR 226 (S) at 234 at p 234A-B where the court held:

> "**The appellant cannot therefore be allowed to rely on the fact that the property was registered in his name. Although it is true that registration of an immovable property raises**

> **a presumption of ownership**, where a party proves that registration was done as an administrative necessity like in this case, **one cannot rely on registration to assert the right of ownership**. The family entered into an agreement in terms of which the appellant because of his ability to obtain a loan from CABS to help pay the balance be registered as the owner. The property was registered in the appellant's name to secure the loan. The respondents together with their mother, Christine Kawadza paid the monthly instalments… **The court a quo correctly found that the rightful owner of the property was the late Christine Kawadza**." (*my emphasis*)

Given Exhibit 4, it was incumbent upon the plaintiff to produce evidence showing that the registration was a mere formality and that she, too, had an equal share of the rights therein. This she failed to show. Her assertions that she jointly acquired the property and has a valid claim thereto were just bald and unsubstantiated. She testified that she was allocated the property after obtaining a supporting letter from ZANU PF, which she used at the fourth defendant's offices to acquire the property, and opted to have it registered in the name of the first defendant, just to honour him as her husband. She failed to produce any evidence to substantiate these allegations. The alleged letter was not even produced, nor was there any proof of payments of the instalments she allegedly made towards the acquisition of the property. Under cross-examination, she even failed to identify the ZANU PF department that allegedly issued the letter for her to be allocated the property. The following exchanges in her cross-examination are pertinent:

> "Q. You also told the court that you were allocated the house on the strength of a recommendation letter from ZANU PF is that correct?
> A. Yes
> Q. You even indicated that you were asked why your husband could not apply himself yet he was working for ZANU PF or at the offices, is that what you are saying?
> A. It is not that I was asked, but I am the one who was asked. It meant an employee of the Municipality not an employee from some ZANU PF offices.
> Q. Which department in ZANU PF allocated houses on that day?
> A. We were told that the houses were not being allocated by the Municipality. Instead they were being allocated by ZANU PF. So the houses were for the Municipality. We were told by Municipality officers that they wanted some letters from ZANU PF for one to have a house.
> Q. **So you cannot tell the court which department of ZANU PF issued or allocated, correct?**
> A. **That can be basically answered by those from Chitungwiza Municipality. Personally, I wouldn't know."** (*my emphasis)*

She admitted that she does not know which department of ZANU PF assisted her with the alleged letter. She opted to defer the knowledge to the fourth defendant. This is her case and not that of the fourth defendant. Besides not stating which ZANU PF office gave her the letter, the alleged letter was never produced. It remained her mere say-so that she acquired the property with the assistance of ZANU PF. She later attempted to claim that those documents were missing from the file at the fourth defendant's office. She, however, did not adduce any evidence from the fourth defendant, the custodian of the records for the property, regarding this new allegation, which was not even stated in her summary of evidence. Even after claiming to have been allocated the property, she further alleged that she paid instalments for the property after the first defendant deserted their home in 2002, but again she completely had nothing to show to the court. The law is trite that bald and unsubstantiated assertions do not establish a party's purported or announced position. This was affirmed in *Chinyenze* v *Law Society of Zimbabwe* SC 08/22, para 39, where MAVANGIRA JA said:

> "It is trite that **courts,** and indeed the Tribunal, **decide matters on the basis of evidence that is placed before them and not on the mere say so of a litigant**. Every averment made must be substantiated by evidence in order for the court to place any weight on it. **Bald assertions will not assist a litigant who desires to establish his case."** (*my emphasis*)

See also *Buchwa Iron Ore Mining Company (Pvt) Ltd* v *Sheriff of the High Court Gweru N.O & Anor* SC 94/24 para 34, where the court made the following apposite remarks:

> "The law is clear on the consequences attaching to the adduction of insufficient or poor evidence before the court. In the recent case of *Dube* v *Murehwa* SC 68/21 at p10, the court aptly commented as follows on the impact of failure to adduce adequate evidence to one's claims; '**The law is clear that bald and unsubstantiated allegations do not establish a litigant's purported or announced position. See *Akhtar v Minister of Public Commission* SC 173/97.** The court *a quo's* decision cannot therefore be faulted because the evidence placed before it established on a balance of probabilities that the first respondent had rights emanating from the lease agreement with the second respondent **whilst the appellant only made bare allegations which were not sufficient to prove** the existence of any material disputes of facts.'" (*my emphasis*)

The plaintiff's case that she jointly acquired the property with the first defendant rested solely on bald and unsubstantiated allegations. The evidence was so poor that the court, acting reasonably, could or might not find for her at this stage. Exhibit 4 crushes her bare assertions, as it confirms that the property is registered solely in the name of the first defendant. She has not shown that as at the date on which the agreement of sale was concluded she had any valid right

in the property as a co-owner. There is nothing to show that she had jointly acquired the property or that the first defendant was not the sole true holder of exclusive rights and interests in it.

The divorce proceedings instituted after the sale cannot assist her case. There was no dispute that the property was sold on 6 May 2023. She admitted that she became aware of the sale after it had been concluded. Her legal practitioners even went on to deliver the letter addressed to the fourth defendant and copied to the third defendant dated 18 May 2023 (Exhibit 3), which also confirms the same position. The summons for divorce in which she claimed a 90 per cent share of the property was admittedly filed after the sale. It is common cause that the summons was issued on 13 July 2023. To that extent, the matter had not commenced or reached *litis contestatio* for the principle of *res litigiosa* to even apply. The principle was set out succinctly in *Chenga* v *Chekadaya* SC 07/13 at pp 9-10 where the court said:

> "The last issue that falls for determination is whether or the principle of *res litigiosa* applies in the present case. In *Waikiki Shipping Company Limited* v *Thomas Barlaw and Sons (Natal) Ltd and Anor* 1978 (1) SA 671 at 676 H the court defined "*res litigiosa"* as objects that are the subject matter of litigation.
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> In *Zimbabwe Banking Corporation Ltd & Anor* v *Shiku Distributors (Pvt) Ltd and Ors* 2000 (2) ZLR 11 (H) at 18F the court held that:
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> > '…. a *res litigiosa* may not be sold after institution of action as there is no-one who can be enriched by the right as everyone has an equal right to prosecute it.'
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> **It is trite that all personal actions have the effect of rendering their subject matter *res litigiosa* at the stage of *litis contestatio*. The relevant stage is not the time of commencement of action, but the time of *litis contestatio***. In the case of *Opera House (Grand Parade) Restaurant (Pvt) Ltd v Cape Town City Council* 1986 (2) SA 656 (C), it was held that in a real action (action in *rem*) the land becomes *res litigiosa* on the service of summons while in a personal action, that status was achieved at the closure of pleadings." (*my emphasis*)

There is no doubt that the land in question had not become *res litigiosa* at the time it was sold to the second defendant as the claim for a share of the property had not yet been filed or commenced. It was only commenced later after the sale, a fact which is common cause. The plaintiff has no refuge in the principle of *res litigiosa* to render the agreement of sale illegal. She also admitted under cross-examination that there was no court interdict or caveat barring the first defendant from dealing with his rights in the property or alienating them as he would wish. She also accepted that the fourth defendant was only informed of the transaction after it had already been concluded. Thus, as shown in Exhibit 4, the fourth defendant confirmed that, at the time the letter from the plaintiff's legal practitioners, Exhibit 3, was communicated, the second defendant

had already signed the cession papers, paid the transfer fees, and the process was awaiting final approval by Council. There was, therefore, nothing at law that curtailed the first defendant's right to dispose of his property.

It is trite that a marriage *per se* does not entitle a spouse to either real or limited rights in a property acquired during the subsistence of the marriage. Exhibit 2 does not confer on the plaintiff an automatic entitlement to ownership of, or rights and interests in, the property registered in her husband's name. Our law is settled that all marriages in Zimbabwe are out of community of property, and spouses in a marriage can independently acquire and own property in their individual capacities, and are free to dispose of their property without recourse to the other spouse. The first defendant was entitled to sell the property registered in his name. The fact, therefore, that the sale was made without the plaintiff's knowledge or consent is immaterial; it does not render the sale unlawful or fraudulent. The argument that his rights are not absolute but limited does not change the fact that he was entitled to dispose of the property. The position related to the law that spouses have no automatic title to the property registered in the name of the other spouse by virtue of the marriage was enunciated in *Chigwada* v *Chigwada & Ors* 2020 (2) ZLR 1353 (S) at 1366C-E where MALABA CJ (as he then was) made the following remarks which are apposite:

> "The law that governs the property rights of married persons referred to in s 5(3)(a) of the Wills Act is the Married Persons Property Act, which states that **since 1929 marriages in Zimbabwe are out of community of property**. **Spouses in a marriage out of community of property are legally entitled to own and dispose of property in their individual capacities. The import of having marriages out of community of property is that a spouse is allowed to own, in his or her personal capacity, movable and immovable property and any other rights or interests of value**. If a spouse has immovable property registered in his or her name, be it the house used as the matrimonial home, **he or she has the right to dispose of it by will to whomsoever he or she chooses**. The right of a property owner to dispose of his or her estate by will to whomsoever he or she chooses is one of the rights constituting ownership of property. In *Marckx* v *Belgium* 13 June 1979 Series A No. 31, the European Court of Human Rights observed that "the right to dispose of one's property constitutes a traditional and fundamental aspect of the right of property".
>
> Such are the factual and legal implications of marriages out of community of property. **It is not correct to assert that a spouse, by virtue of a marriage, is entitled to own property that is owned and registered in the name of the other spouse. Marriage does not afford such rights.** The case would be different if marriages in Zimbabwe were in community of property, as property would be owned as common property by virtue of the type of marriage entered into by the parties." (*my emphasis*)

The above legal position equally applies in this case, where the property was registered only in the name of the first defendant, and the plaintiff has failed to adduce any evidence of her valid rights and interest in the property or ownership thereof. In other words, she failed to establish that she acquired the property with the first defendant. She cannot merely claim entitlement to the rights and interest in the property by virtue of the marriage. The fact that the marriage was not dissolved by a competent court is neither here nor there. In the absence of evidence showing that she acquired any limited rights in the property from the Municipality of Chitungwiza, it follows that she has no right to disturb the sale of the property by the first defendant, the sole registered holder of such rights and interests in the property. She cannot impeach the sale. To that end, the principles set out in *Muswere* v *Makanza* 2004 (2) ZLR 262 (H) would apply. In that case, at 263A-C, MAKARAU J (as she then was) said:

> "**The position in our law is therefore that a wife cannot even stop her husband from selling the matrimonial home or any other immovable property registered in his sole name but forming the joint matrimonial estate**. See *Muzanenhamo*'s case (*supra*). There must be some evidence that, in disposing of the property, the husband is disposing it at under value and to a scoundrel. See *Muganga'*s case (*supra*). **Mere knowledge that the seller of the property is a married man who does not have the consent of his wife to dispose of the property is not enough**. See *Pretorius* v *Pretorius* 1948 (1) SA 250 (A).
>
> On the basis of the above, it clearly presents itself to me as the position at law that a wife in the position of Mrs Makanza has no real right in immovable property that is registered in her husband's sole name, even if she contributed directly and indirectly towards the acquisition of that property. Her rights in relation to that property are limited to what she can compel her husband to do under family law to provide her with alternative accommodation or the means to acquire alternative accommodation. Her rights, classified at law as personal against her husband only, are clearly subservient to the real rights of the husband as owner of the property." (*my emphasis*)

The principles in the *Muswere* case (*supra*) were endorsed by the Supreme Court in *Chigwada* v *Chigwada & Ors* (*supra*). That is our current law. Equally, in *casu*, the registration of the property in the name of the first defendant with the fourth defendant, in the absence of any other satisfactory evidence, is proof that he duly holds such rights and interests in the property independently and exclusively from his wife. He would thus be entitled to dispose of that property to whosoever he chooses without regard to the plaintiff. The plaintiff's position is further compounded by the fact that the proceedings in which she claims a share in the property were instituted only after it had already been sold to a third party. The first defendant had already

alienated his rights in the property, and at the time he did so on 6 May 2023 he was legally entitled to do so. The court cannot, therefore, accept that there was anything to impeach the validity of the sale of the property and its cession into the name of the second defendant.

No misrepresentation was established. It was not clear from the plaintiff's pleadings as to who made the false statements and to whom. An attempt was made in submissions by Mrs *Mleya* to start to argue that the misrepresentation was made to the fourth defendant in an affidavit regarding the first defendant's marital status. But that is not the plaintiff's case as pleaded. She realised that the claim that the sale was fraudulent or that there was any fraud committed by the defendants was clearly untenable. Unfortunately, the plaintiff is bound by her own pleadings, and she cannot blame anyone if she is held strictly to them.

Further, the fact that the sale was concluded without her knowledge or consent does not prove any fraud or a fraudulent sale, as the first defendant was entitled to alienate his rights in the property to anyone without the consent of the plaintiff. It was not shown that there was any false statement made by the first defendant to anyone in the transaction. The plaintiff also failed to establish that the three defendants connived to fraudulently sell the property. It was mere speculation by the plaintiff that there was collusion. Thus, it was simply argued that because the first and second defendants are represented by the same legal practitioner and filed their plea together, then they connived to enter into the agreement of sale. A court of law does not act on mere conjecture. It can only act on evidence. The evidence on connivance could only have related to the time when the transaction was concluded. None was adduced.

There was nothing to show that the first defendant made any misrepresentation to the plaintiff, second, third or fourth defendant concerning his rights in the property. There was also no evidence that the second defendant acted in connivance with the first defendant. The plaintiff, in fact, accepted that she communicated with the second defendant only after the sale, when the occupant received the notice to vacate the property. This was her evidence in chief:

"Q. Which property were you being told to vacate from?
A. The house at no. 6 Chaitemura Crescent, Zengeza 5, Chitungwiza
Q. You said that this letter was addressed to you, can you tell the court who gave this letter to you?
A. It was handed to me by Mr Jemwa
Q. When?
A. Year 2023
Q. **Do you remember the month or date you got this letter from the second defendant?**
A. **Sometime in June 2023**

Q. **Can you tell the court what you did after receiving this document?**
A. **Mr Jemwa left me with his contact number as such, I later called him telling him that the house was not on sale.**" (*my emphasis*)

Nothing, therefore, arises to show that the second defendant was even aware of the plaintiff's alleged valid claim to the property before the sale was concluded. The same goes for the third defendant. The plaintiff's case was that the estate agent was aware of her rights or claim in the property at the time of the sale but, despite the knowledge, connived to fraudulently sell the house. There is no dispute that the third defendant was only an agent of the seller, the first defendant in the transaction. The law of agency is very clear that an agent accounts to his principal for actions within their mandate, but can only become personally liable to a third party if they act outside that authority, misrepresent their role, thereby creating a separate personal contract with the third party under the principle of the undisclosed principal. The law of agency was fully explained in *Musemwa Ors* v *Estate Misheck Tapomwa* HH 136/16 at pp 5-6, where the court held that:

> *"*In *The Law of Agency in South Africa* 2 nd ed, the authors J E De Villiers and JC MacIntosh describe an agent as,
>
> > '…a person who has been authorised to act for and on behalf of another (called the principal) in contracting legal relations with third parties; **the agent represents the principal and creates, alters or discharges legal obligations of a contractual nature between the latter and third parties.'**
>
> Put simply, an agent is a person who is authorised to act on behalf of another, being his principal. The concept of agency is based on the common law principle "*qui facit per alium, facit per se"* which translates to mean that, "*he who acts through another, acts personally".* This concept is no different from the vicarious liability concept which makes another party liable for the acts and omissions of another. The law of agency regulates a situation where an agent deals with a third party and performs an act on behalf of a principal. Where one tasks another to sell his property on his behalf, an agency is created.
>
> The facts without doubt disclose that the third and fourth defendants were agents of the first and second defendants and facilitated the sales of the stands to the plaintiffs. They were to hold the purchase price of the stands for the first defendant. **They were not party to the contract of sale and remained purely agents of the first defendant.**
>
> The subject regarding the liability of an agent to a third party in a contract is trite. The position was dealt with in *Lens Agencies (Pvt) Ltd* v *Knight Frank Beverly and Anor* 1997 (2) ZLR 167 (SC), where the court remarked as follows:
>
> > 'In my view, however, the privity of contract is clearly between the landlord and tenant. The estate agent holds the deposit on behalf of his principal, the landlord, and is accountable to him alone. It is the landlord who is accountable to the tenant. The landlord does not claim interest on the deposit from the estate agent. Nor do I think it has been shown that he has a duty to do so, and then to account to the tenant if that were the position, the whole structure of the tripartite relationship would be affected.'

> …**The law is clear that where an agent executes a mandate on behalf of a known principal, he carries out the mandate on behalf of the principal and binds his principal. An agent who has actual or apparent authority is not liable for acts committed during the course of his employment. The principal remains accountable to the third party.** The agent becomes liable only in instances where he has no authority to act and or has not disclosed his principal or the principal is unidentified." (*my emphasis*)

In this case, there was no basis established for the suit against the third defendant, the agent of the first defendant in the transaction. The plaintiff, in her evidence, failed to establish any cause of action for a fraudulent sale against the third defendant. Despite having been the agent of a known or disclosed principal, there was no evidence that the agent had any knowledge of the plaintiff's alleged valid claim to the property before it acted for the first defendant in the conclusion of the sale on 6 May 2023. The plaintiff attempted to adduce hearsay evidence, claiming that the third defendant was informed by the tenant at the property that it was not for sale when they visited for viewing. The alleged tenant was not called to testify. In fact, Mrs *Mleya* accepted that the plaintiff was giving hearsay evidence and withdrew her question thereof.

The plaintiff herself tendered the letter dated 19 May 2023 from the third defendant to her legal practitioners (Exhibit 5). In that letter, they responded to the letter from the plaintiff's legal practitioners dated 13 June 2023 (there was an error, as it was in May, though). That letter was a communication to the fourth defendant, copied to the third defendant, on the plaintiff's claim to the property (Exhibit 4). There is no letter or evidence of any communication between the plaintiff and the third defendant before or at the time the sale was concluded on 6 May 2023. In its response to that Exhibit 4, the third defendant acknowledged receipt of the letter and stated: "[w]e have noted the contents therein with much surprise." This document, therefore, destroys the plaintiff's allegation that the third defendant had knowledge of her rights and interest in the property at the time of the sale but nevertheless proceeded with the sale in connivance with the first and second defendants. Clearly, the evidence does not even make out a *prima facie* case for any wrongful or fraudulent conduct of the agent. There was no factual and legal basis for this suit against it in the first place. The evidence was so poor that the court cannot reasonably conclude that there is anything for the defendants to rebut or answer.

I am aware of the position that the court must be extremely chary about granting absolution, as the court would have only heard from one side, but this case is an exception where the defendants ought to be absolved, as making them testify would serve no just purpose. The

cautious approach the court must adopt when dealing with the plaintiff's evidence was affirmed in *Bakari* v *Total Zimbabwe (Pvt) Ltd* SC 21/19.

I am satisfied that the essential elements of the claim founded on fraud were not established. There was no evidence that the sale in question was fraudulent. There is no need, therefore, for the defendants to testify, as doing so would be an injustice or seeking to assist the plaintiff fill in gaps in her testimony. There is no evidence upon which the court acting reasonably might or could find for the plaintiff. The plaintiff failed to give evidence which establishes any *mala fides* or fraudulent conduct on the part of any of the defendants. There was not an iota of evidence to support the assertion that the defendants connived and acted unlawfully.

Given the failure to establish her case of a fraudulent sale, I agree with Mr *Deme* that the issue of whether cession was effected or not becomes irrelevant. The plaintiff's cause of action is that the agreement of sale of the property was fraudulent. Once she has failed to establish that, which is also the first triable issue, it means that the second triable issue becomes unnecessary to detain the court. It would become merely academic to engage in that debate. The issue of cession does not form the pith of the plaintiff's cause of action. Having failed on the first hurdle to make a *prima facie* case that the sale was fraudulent, it follows that absolution from the instance ought to be granted. There is nothing else to consider in the absence of evidence establishing the invalidity of the sale, as that is what the plaintiff had impugned.

For completeness, I will relate to the relief sought in passing. The plaintiff's main relief is couched as follows:

> "Plaintiff claims against Defendants:
>
> (a) **An order for cancellation of the sale** of Stand 13271Zengeza 5 Chitungwiza also known as Number 6 Chaitemura Choseva Crescent, Zengeza 5, Chitungwiza between 1st and 2nd Defendants." (*my emphasis*)

I must state that this relief sought by the plaintiff was, in any case, bad in law or legally incompetent. It is trite that the remedy of cancellation of an agreement is only available to the other party to a contract. It is a remedy available to the innocent party in respect of a breach going to the root of the contract. See *Rolen Trading (Pvt) Ltd* v *Parkside Holdings (Pvt) Ltd* SC 106/22 at pp 8-9, where the court commented on cancellation of a contract as a remedy available to the innocent party to a contract for breach of contract in the following words:

> "**Cancellation of a contract is a legal act that delineates the relationship between the parties to the contract at a specific moment**. Not every breach entitles the injured party thereto to cancel the contract. The trite position is that, unless otherwise agreed, it is only that breach that goes to the root of the contract that can give rise to a right to cancel. In other words, it is a breach that goes to the root of the contract that entitles the aggrieved party to cancel." (*my emphasis*)

The principle of privity of contract also states that a non-contracting party cannot seek the remedy of cancellation of an agreement to which he or she is not a party. In this case, there is no dispute that the plaintiff is not a party to the contract or agreement of sale of the property. The contract was concluded between the first and second defendants. It is only either the first or second defendant who would legally be entitled to the remedy of cancellation of the contract in the event of material breach of the contract of sale and not the plaintiff. The appropriate remedy for the plaintiff, which could be competently granted, would have been for the agreement to be declared a nullity or set aside. The remedy of cancellation of the agreement would be legally incompetent.

DISPOSITION

The plaintiff completely failed to make out a *prima facie* case against the first, second and third defendants. There is no evidence to establish the essential elements of the plaintiff's claim. It was common cause that at the time of the sale on 6 May 2023 the first defendant was the sole holder of rights in the property and that the property was registered in his name was confirmed by Exhibit 4. The plaintiff also admitted that the claim for the sharing of the property in HCHF 4642/13 was only lodged after the sale had been concluded between the first and second defendants, and there is no question of the property being *res litigiosa* that arises. The plaintiff failed to adduce evidence to establish any rights and interests in the property, as her case rested entirely on bald and unsubstantiated allegations that she was allocated the property by the fourth defendant with the support of ZANU PF.

Nothing was produced, including proof of the alleged payments of instalments she claimed. The law is settled that our marriages being out of community of property, spouses can own property in their own right independently of each other, and each can freely dispose of his or her property without regard to the other spouse. See *Chigwada* v *Chigwada* & *Ors* (*supra*). No fraud was proved as there was no evidence of any misrepresentations made by the defendants to anyone or by the first defendant in the disposal of the property. It was also not shown that the

second and third defendants were aware of any rights and interests in the property purportedly held by the plaintiff before or at the date of the sale. There was no evidence to prove a *prima facie* case that the sale was fraudulent and accordingly null and void. There is nothing, therefore, that arises for the defendants to rebut in their own case. They ought to be absolved from the instance.

It is well-established that the award of costs is entirely within the discretion of the court. Costs on a legal practitioner and client scale are not simply granted because a party has requested them. They are granted in exceptional circumstances such as where there is evidence of abuse of court process. See *Dongo* v *Naik & Ors* 52/20, where GWAUNZA DCJ (as she then was) stated that:

> "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that costs on a higher scale are granted in exceptional circumstances. The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned."

Mr *Deme* did not motivate the claim for costs on a higher scale but merely requested them. Mr *Chagwiza,* on the other hand, made extensive submissions on the issue of costs. The crux of his argument is that the litigation against the third defendant was unwarranted and constituted an abuse of court process. I am not persuaded that punitive costs are warranted in this case. The plaintiff may have failed to make out a *prima facie* case, but her claim does not constitute an abuse of court process nor can the proceedings be classified as reckless. It does not follow that once a party fails to prove its case, then it ought to be penalised with an award of costs on a higher scale.

In *casu,* the plaintiff sought to claim what she believed she was entitled to. She entirely relied on her legal practitioners for the formulation of her claim and the conduct of her case to establish it. The advice she received, in my view, shows a misapprehension of the law applicable to her case. She reacted when it was too late. She is attempting to close the stables when the horse had bolted. While she shares the blame for the lack of diligence in failing to claim her share of the property through divorce proceedings for over 20 years, it would be unfair to penalise her in a case in which it is apparent that she has not been properly advised regarding her

legal remedies, if any. In any case, the legal practitioners' lack of diligence cannot be taken to be gross and unpardonable. I, therefore, believe that visiting the sins of her legal practitioners for their lack of diligence on her would be a serious miscarriage of justice. Costs on the ordinary scale would suffice in the circumstances. There is, however, no reason to depart from the general rule that the successful party ought to recover his costs.

Accordingly, the following order will ensue:

1. The first, second and third defendants are absolved from the instance.

2. The plaintiff shall pay the costs of suit.

DEMBURE J: ……

Matsika & Associates, plaintiff's legal practitioners
Thoughts Deme Attorneys at Law, first and second defendants' legal practitioners
Kwenda & Chagwiza Attorneys, third defendant's legal practitioners